

## 25TRCV03566 25TRCV03566

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-25

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Case Number: 25TRCV03566 Hearing Date: August 25, 2026 Dept: M

LOS ANGELES SUPERIOR

COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday,

August 25, 2026

Department M Calendar No.

PROCEEDINGS

Lorenz Roseman v. Torrance Memorial

Medical Center, et al.

25TRCV03566

1. Torrance

Memorial Medical Center's Motion to Compel Responses to Requests for Production  
of Documents, Set Two

2. Torrance Memorial Medical Center's Motion to Deem

Requests for Admissions, Set One Admitted

3.

Torrance

Memorial Medical Center's Motion to Deem Requests for Admissions, Set Two  
Admitted

4.

Torrance

Memorial Medical Center's Motion to Deem Requests for Admissions, Set Three Admitted

5. Torrance Memorial Medical Center's Motion to  
Deem Requests for Admissions, Set Four Admitted

#### TENTATIVE RULING

Torrance

Memorial Medical Center's Motions to Deem Requests for Admissions, Sets 1 to 4,  
Admitted are denied.

Torrance

Memorial Medical Center's Motion to Compel Responses to Requests for Production  
of Documents, Set Two is deemed moot.

#### Background

Plaintiff

filed the Complaint on October 17, 2025. Plaintiff alleges medical negligence  
against Defendants.

Motions to Compel/Deem  
Admitted

CCP

§ 2031.300 states: "If a party to whom a demand for inspection, copying,  
testing, or sampling is directed fails to serve a timely response to it, the  
following rules shall apply: The party making the demand may move for an order  
compelling response to the demand." (CCP  
§ 2031.300(b)).

Code

Civ. Proc., § 2033.280 states:

"If

a party to whom requests for admission are directed fails to serve a timely  
response, the following rules apply:

(a)

The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1)

The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

(2)

The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(b)

The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).

(c)

The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion."

Defendant

served upon Plaintiff Requests for Admissions, Set One, on February 10, 2026, Requests for Admissions, Set Two, on February 18, 2026, Requests for Production of Documents, Set Two, on February 18, 2026, Requests for Admissions, Set Three, on March 13, 2026, and Requests for Admissions, Set Four, on April 22, 2026. (Decls., Scott Greene, ¶¶ 2-3). Defendant contends that no responses were served to the discovery requests. (Id.)

Plaintiff

filed written oppositions to the motions. Plaintiff indicates that new counsel was recently substituted into this case and that verified responses were served

on August 12, 2026. (Decls., Axel A. Morales). Attached to the declarations were the responses that were served. The responses to the requests for admissions are in substantial compliance with CCP § 2033.220.

Defendant

contends that the responses to the requests for production of documents are deficient. However, the propriety of those responses would be the subject of a motion to compel further responses after a proper meet and confer, and an IDC, if necessary.

Therefore,

the motions to deem Requests for Admissions, Set One to Four, admitted are denied.

The

motion to compel further responses to Request for Production of Documents, Set Two, is deemed moot.

Sanctions

Defendant's

requests for monetary sanctions are denied. The notices of the motions are defective. "A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." Code Civ. Proc., § 2023.040. Here, the notices of motions did not seek any sanctions. Defendant's belated attempts to request sanctions in the Replies do not cure this defect.

Thus, the requests for sanction are denied.

Defendant

is ordered to give notice of this ruling.